

The Claremont City Council held a meeting on Wednesday, March 28, 2018, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Lovett at 6:30 p.m.

Members of the Council present were:

At-Large Councilor Claire Lessard
Ward I Councilor Andrew O'Hearne
Ward III Councilor Jonathan Stone
Assistant Mayor Allen Damren
Mayor Charlene Lovett
At-Large Councilor Jeremy Zullo
At-Large Councilor Abigail Kier
Ward II Councilor Scott Pope

Absent:

At-Large Councilor Nicholas Koloski

Also present:

Ryan McNutt, City Manager

AGENDA CHANGES

Mayor Lovett said the Capital Improvements Plan has been moved to the April 11 Council meeting. There have been additions to this agenda and there is no pressing reason to do it tonight.

MAYOR'S NOTES

General Aviation Proclamation

Mayor Lovett read a proclamation proclaiming General Aviation to be a vital strategic resource to the City of Claremont and declaring March as General Aviation Appreciation Month in the City of Claremont.

Mr. McNutt thanked the Airport Advisory Board and Richard Hatch, Base Operator at the airport. He also thanked former Fire Chief Rick Bergeron and current Fire Chief Bryan Burr whose duties include management of the airport.

Mayor Lovett's notes:

- Participated in the "Internet Crawl" with Senator Hassan and the Internet Association to spotlight the necessity of internet for local businesses and the community
- Congratulations to Stevens High School student athletes: Kelsey Belisle, Drew Grenier, Mitchell Paquette, and Elyse Scott who were to be recognized at the St. Joseph's Sport Night
- Thanked Marlene Jordan, Assessor, for her 11 years of service to Claremont as she is moving to the Assessing Department in Lebanon
- Former City Councilor Carolyn Towle will be honored with the Good Scout Award April 11, 12 noon, at the Common Man

CITIZEN'S FORUM

Jerry Moore introduced himself and his son-in-law Mike DeWitt. Mr. Moore said he is the owner of 3 Ralston Place. It is a two-family home and his son-in-law Mike DeWitt also lives there. Mr. Moore said Mr. DeWitt went to the Veterans Administration (VA) to get financing to purchase the property. They have hit a roadblock because Ralston Place is classified as a private road and the owners of the five properties that abut the road are the owners of the road. He said the VA is concerned about the road being private property and that the property owners on the ends could close the road which would leave no access for Mr. Moore's property.

Mr. DeWitt said Attorney James Feleen could not locate any paperwork for this road at the Public Works Department. He said they have lived on the road for 12 years and the City plows and sweeps it, so the assumption is that it is a City road.

Mr. Moore asked what it would take to convert the road to a City road. He said if the road were to be blocked off, emergency vehicles would have no access to the residents. He asked for a letter addressed to the VA saying that the road is private, but would never be blocked off.

Mr. DeWitt noted that 1 Ralston Place has access to Hanover Street and the property at the other end has access to French Terrace, but the three houses in the middle do not have direct access to other roads.

Mr. McNutt asked Mr. Moore and Mr. DeWitt to call the City Manager's office.

Mr. Moore recalled when the wall was built (which created Ralston Place). He thinks it was built as a safety feature to keep people from sliding down the hill.

Mr. Pope said he lived in that neighborhood for a number of years. He said when Public Works did the Hanover Street Project, they did rebuild part of that wall and they have paved that road. He suggested the City accept it as a public road.

Southwestern Community Services Bus Service

Mayor Lovett said in the past two years, the City has provided support to the bus service. She said that public transportation is a part of the Master Plan. She said Southwestern Community Services will ask for funds from the City.

Keith Thibault, Southwestern Community Services (SWCS) Chief Development Officer, introduced himself and Terri Paige, SWCS Transportation Director. Mr. Thibault said last October the bus service completed its first year under SWCS and in December completed its first full calendar year of operation. The program is running in the black. They are in the process of rebranding the program. Later this year they will roll out a new name and logo. They have been working with NH DOT (Department of Transportation). They are also working with the Sullivan County Economic Profile Group. They are planning to link up with the Upper Valley by having two runs a day from Claremont to the Lebanon area. They are working with outside consultants to make sure their routes are as efficient as they can be. POAH (Preservation of Affordable Housing), management group for Sugar River Mills, along with other organizations have contributed to the bus program. The program runs off federal funding and fares. They need considerable local matches for the federal funding; the County has donated \$50,000; Charlestown \$14,500; and Newport has doubled its contribution. They have a volunteer driver program and they are looking for volunteer drivers.

Ms. Paige said expanding operations is contingent on funding. Funding from the Federal Transit Association (FTA) has been flat for a long time. Expansion on the Route 120 corridor will require funding. They continue to look for partners. They are looking to do local advertising on the buses and they are looking to make sure they are as efficient as possible. They have had an FTA and NH Transportation audit and Medicaid compliance review. The number of people using the buses to get to work is growing. The buses are not used just for medical appointments.

Mr. Thibault said in the last quarter of 2017, over 5,500 rides were given; 3,200 in the Claremont run. A lot of people depend on this program. At the end of this week, the US Cellular advertising contract will be done. That was \$18,000 per year from US Cellular.

Ms. Paige said they are getting quotes for new signage.

Mr. Pope asked if the bus goes to the Park & Ride in Ascutney. Mr. Thibault and Ms. Paige said no, but they will look into it.

Ms. Paige said the bus driver can deviate up to a quarter mile from the route for people who call the day before for pick up.

Mr. Thibault said for needs beyond that, there are the volunteer drivers.

Ms. Kier asked if funding were available, what would be the start date of driving to Lebanon. Ms. Paige said they have the vehicle and could probably get a driver, so they could start quickly. They have a grant to work on a plan.

OLD BUSINESS

Community Development Block Grant, 46-54 Opera House Square – Proposed Amendment – Public Hearing

Nancy Merrill, Planning and Development Director, said that the CDA (Claremont Development Authority) owns the building that is two doors down (has the Shaheen office in it) called the Farwell Block. In August we applied for a CDBG (Community Development Block Grant) to rehabilitate that upper level for the Dental Center. The Dental Center needs more space for dentists and to build a lab. Last year they extracted 3,700 teeth, but were only able to replace 8%. With the lab, they would be able to significantly increase that number. The money would be used for rehabbing the upper level, heating, electrical, and internal fit-up. It would also be used to put in an elevator in the back of the building. She said the grant was written so that the Dental Center would be the subrecipient of the funds, however, they didn't want to do that work for a building they don't own. They will sign a 20-year lease. The recommendation is to amend the grant to remove the Dental Center as subrecipient, but they will still get the funds.

George Hunton, NH CDFA (Community Development Finance Authority) said this is a technical change. CDA will be the beneficiary of the improvements.

Mr. O'Hearne asked when the property was transferred from the City to the CDA. Ms. Merrill said the Farwell Block is owned by the CDA. They took ownership in 2000 from the City. She said there are two buildings involved. The building that is right next door, the old Pleasant Restaurant, is owned by the City. The new elevator will serve both buildings. Someone is interested in a tenancy of the old Pleasant Restaurant; it is being treated as a separate project. When the time comes, the CDA may come to the City about transferring that building to the CDA. In the CDA's by-laws the Council has given them the authority to develop properties for economic development.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

A motion was made by Mr. Pope and seconded by Mr. Damren to remove Sullivan County Oral Health Collaborative as the Subrecipient for the Sullivan County Oral Health Collaborative Community Dental Center Expansion project, and further to authorize the City Manager to execute all documents as may be required related to any related CDBG contracts, and to accept and expend the funds in accordance with the grant.

Voice vote: motion carried 8-0.

Ms. Merrill said the CDFA has been a tremendous partner to Claremont. In the last five years, the City has received \$2.5 million worth of Community Development Block Grants for such things as Pleasant Valley Estates sewer system, Claremont Soup Kitchen, and emergency funds in the Sawtooth Parking Garage. She said Mr. Hunton has been very helpful to Claremont.

Parking Rental Agreement for Goddard Block

Mr. O'Hearne talked about Council Rule 25. Filing with Clerk, and that the information for this item was not received by the Council until Monday.

A motion was made by Ms. Kier and seconded by Ms. Lessard to suspend Council Rule 25. Filing with Clerk.

Roll call vote:

Lessard - yes

O'Hearne - yes

Stone - yes

Damren - yes

Zullo - yes

Kier - yes

Pope - yes

Lovett – yes

Motion carried 8-0.

Ms. Merrill said Kevin LaCasse and Jay Barrette spoke to the Council in June about the Goddard Block Project and parking. A parking garage study was done for the area behind the Oddfellows building. It will cost \$4.9 million for 119 spaces, which is \$38,000 a spot. There would be 50 spaces on the main level. There was a stakeholders meeting and they came up with a parking plan for the areas behind those buildings. If done right, there will be more surface parking than there is now. There is money in the budget for Pleasant Street revitalization. There was a meeting with the American Legion regarding parking behind the Goddard Block. The Legion is fine with the plan as long as the spaces next to their building are not impacted. With the zoning variance, Goddard can get 36 units. There are 14 parking spaces on Mr. LaCasse's lot and he is seeking 22 additional spaces. The agreement draft allows the City to change the location of spaces (if needed) as long as they are within 1,000 feet (2 blocks) of the building. She said Mr. LaCasse's closing is April 6. The lot is not heavily used. There will be shared parking (restricted 8 p.m. to 8 a.m.). The City owns the land that will be used for this parking. We will go with the rental versus conveying the land because we might move these spaces when we see the overall parking plan.

Mr. McNutt said part of the discussion at the downtown stakeholder's meeting was that some people may demolish some structures and have more parking spaces available.

Mayor Lovett talked about having a plan that would show fairness across the board. She said the parking has to be resolved before they can get a Certificate of Occupancy.

Kevin LaCasse, New England Family Housing, gave a brief history of the project. The building is in great disrepair and will require more money than a private entity could afford. There will be commercial occupancy on the first floor and the top two floors will be residential. The problem is there is no parking to support the residents. They have received a variance for

parking (1 parking space per unit) and a variance to allow residential units on first floor of Pleasant Street. They are working to secure funding through several sources. The overall hard construction cost is about \$7.5 million. They are looking for the lease contract for the parking spaces in order to go to closing.

Ms. Kier said at the ZBA meeting that there was another property owner there that was happy to hear the City is willing to reduce the number of parking spaces required.

Mr. Pope is on board with granting the parking spaces. He would like to see actual engineered drawings of the parking spaces. He said there are some leased spaces in that lot and he asked that the City make sure this doesn't impact those spaces.

Mr. McNutt said there are other building owners that would like to see a permanent zoning change to one parking space per dwelling unit. A traffic consultant will be part of the Pleasant Street revitalization and that may mean a reconfiguration of certain lots.

Mr. LaCasse said he hopes to start construction on the project in late May or early June.

Ms. Merrill said the draft of this agreement was created by an attorney and he recommended it be a rental agreement as opposed to a lease because there are underlying property rights that go with leases that don't go with rental agreements. She doesn't think it will impact the site integrity. She said we are looking at \$25 a month per space rental. The agreement can be re-opened every 5 years. This is conditioned on the project being done. There is a requirement for liability and the landlord will give out stickers for identification and enforcement. Space location could change based on the overall parking plan.

A motion was made by Mr. Pope and seconded by Ms. Kier to authorize the City Manager or his designees to take all such actions as may be required to execute a parking rental agreement for 22 parking spaces between the City and Goddard Block Limited Partnership, for the benefit of 54-62 Pleasant Street (Goddard Block). This agreement is subject to the conditions that Goddard complete the renovations prior to the agreement commencement date.

Ms. Merrill said this is for 20 years and can be reopened every 5 years.

Voice vote: motion carried 8-0.

Mayor Lovett asked if Councilors can tour the building before it is gutted. Mr. LaCasse said he can set that up through the City Manager's office. He talked about a shortage of younger people entering the trades and that he would like to offer tours to the students in Claremont. He will coordinate with Mr. Pope.

Mayor Lovett asked for updates on the website. Mr. McNutt suggested creating a project webpage. Mr. LaCasse will work with his webmaster.

Resolution 2018-22 Capital Reserve from Sale of City-Owned Property – Public Hearing

Proposed Resolution:

WHEREAS, the city wishes to effectively manage code enforcement within the city; and

WHEREAS, the sale of city-owned property is an unanticipated revenue for the City resulting in unanticipated revenue that would drop into fund balance; and

WHEREAS, implementation of this plan will result in funding the enforcement and/or costs related to legal action required;

NOW THEREFORE BE IT RESOLVED that, pursuant to RSA 34:1-a, the City of Claremont hereby establishes a reserve fund to be known as the Non-Capital Reserve Fund for Code Enforcement for the enforcement and/or legal action required to enforce codes within the City of Claremont; and

BE IT FURTHER RESOLVED that the City Manager or his designees will cause the proceeds of any monies received from the sale of city-owned land and structures taken by the tax-deeding process to be deposited into said expendable reserve fund for the purpose of enforcing building and sanitary codes and the reduction of blight within the City of Claremont and named as agents to expend said funds. Said expendable reserve fund shall not exceed the amount of two-hundred thousand (\$200,000) without further approval by the Council of the City of Claremont. The Council shall be provided reports on the expenditures of the reserve fund quarterly.

A motion was made by Mr. Damren and seconded by Mr. Stone to adopt Resolution 2018-22 Capital Reserve from Sale of City-Owned Property.

Mr. Damren read the resolution into the record.

Mr. Damren read a comment from Mayor Lovett:

3rd paragraph - It just states city-owned property. For consistency purposes, I believe it should be city-owned property acquired through the tax-deeding process as stated in a subsequent paragraph.

Mr. Damren said after city-owned property, insert “acquired through the tax-deeding process.” He said in the last paragraph, second line, after the word structures to add “, including any recovered legal fees.” He said it was agreed by the Finance Committee and City Staff that a \$200,000 limit was adequate to start.

Mr. Pope asked about receiving recovered legal fees. Mr. McNutt said the City has petitioned the Court to return our legal fees in the Ramirez case.

A motion was made by Mr. Damren and seconded by Mr. O’Hearne to accept the amendments proposed to the resolution.

Voice vote on the amendments: motion carried 8-0.

Voice vote on the resolution as amended: motion carried 8-0.

Community-Wide Cleanup Discussion

Mayor Lovett asked the City Manager for a list of hotspots. She also asked Councilors if they had heard from residents, or if they wanted to add to the list of hotspots. She said April 22 is Earth Day. She asked Councilors if they wanted to be team leaders within their own wards, if not, maybe the At-Large Councilors could step in.

Ms. Keir asked if the City has reached out to community groups. Mr. McNutt said he has coordinated with the Sullivan County ATV Club.

Mr. McNutt said the City has only one dumpster available, so there has to be coordination for when to drop it off for neighborhood events. He emphasized this is to clean up roads, not spring clean homes. He suggested making this a cleanup week and have a different day for each ward.

Mayor Lovett asked to identify the ward leaders and the dates can be worked out with the City Manager.

- Ward 1 – Mr. Damren and Mr. O’Hearne
- Ward 2 – Mayor Lovett and Mr. Pope
- Ward 3 – Mr. Zullo and Mr. Stone

Mayor Lovett asked team leaders to coordinate with Mr. McNutt.

Mayor Lovett asked to add to the list, a piece of property that is under the bridge on Myrtle Street. She said it is privately owned.

Mayor Lovett asked if a webpage can be dedicated to the community cleanup.

Mr. O’Hearne suggested getting a sharps container.

Assessment Overview

Mr. McNutt said tomorrow is Marlene Jordan’s last day. He congratulated her on her new opportunity and thanked her for her service. He said Joe Lessard, from Municipal Resources, will be here until the position is filled. The City is doing a 100% revaluation and it should be done by April 2019. The cost will be part of the budget and it is expected to be six figures.

Budget Discussion

At the March 14th meeting, Councilors were asked for their budget guidance to the City Manager. Mr. Damren asked the Councilors who were absent that night if they wanted to give input. No additional input was given.

NEW BUSINESS

Capital Improvements Plan

This item has been moved to April 11, 2018.

FUTURE AGENDA ITEMS AND DIRECTIVES

Mayor Lovett said there will be a joint meeting of the Council and School Board on April 17.

Mr. O'Hearne said the Council minutes on the website only go up to October of last year. He asked that it be updated.

Mayor Lovett asked about the status of the overhaul of the City's website. Mr. McNutt said it is in the FY19 budget.

Mr. Stone would like to know what the City's plan of action is for City responders in regard to school security.

Mr. McNutt said the Police Department conducts active shooter training. He will check with Police Chief Chase to see what information can be given out publicly.

Mayor Lovett said she might bring this up at the next joint Council/School meeting.

Mr. Pope would like a follow-up on Ralston Place. Mayor Lovett said Mr. McNutt can put it in his City Manager's Report.

Mr. Damren asked about the reassessment funds in the CIP. Mr. McNutt said it is expected to cost less than \$250,000 and will be in the FY19 budget.

Mayor Lovett said she has attended some NICE (Neighborhood Improvement through Code Enforcement) meetings. She mentioned to the City Manager about having education outreach programs for residents to learn about codes; why they exist; and the best way to approach renovations and rehabs.

Mr. McNutt said our Code Enforcement Officers belong to the International Code Council and he will reach out to them to see what training is available. He suggested having it at the Claremont Savings Bank Community Center, similar to the Back-to-School event.

Mayor Lovett said the City Manager's contract was changed to a calendar year evaluation. She said the Council had agreed to give Mr. McNutt quarterly feedback. She asked to add a Non-Public Session to the April 11 Council agenda for this feedback.

CONSULTATION WITH LEGAL COUNSEL

None

ADJOURNMENT

At 9:01 p.m., a motion was made by Mr. O'Hearne and seconded by Mr. Damren to adjourn.

Voice vote: motion carried 8-0.

Respectfully Submitted,

Dorée M. Russell
Clerk to the Council